

Baluwa @ Ballu v. Prabhu Nath Prasad, Executive Engineer, DVVNL

High Court of Judicature at Allahabad · Single Judge · 22 November 2021 · Contempt Application (Civil) No. 4204 of 2021 ·
Contempt petition dismissed after Clause 6.5 bill revision; notices discharged; liberty to challenge revised bill.

HEADNOTE

Where a writ court had directed consideration of a disputed-bill representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, production of a later revision order and revised bill purges contempt. The High Court dismissed the contempt petition and discharged notices without examining the correctness of the revised amount, leaving the consumer at liberty to pursue any remaining grievance against that bill.

FACTUAL SUMMARY

Baluwa @ Ballu alleged that the Executive Engineer, DVVNL, Aliganj, Banda, had not complied with the High Court's 26 August 2019 order in Writ C No. 27978, which had given him ten days to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against a disputed bill for consideration in accordance with law. On 22 November 2021 the licensee's counsel produced a 1 November 2021 order revising the bill to Rs. 9,03,405 and a revised bill, copies of which were handed over in court.

HOLDING-UNITS**HOLDING-UNIT · UP-2005::6.5**

contempt of Clause 6.5 writ direction

HOLDING

Where a writ court has directed that a consumer's representation against a disputed bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005 be considered in accordance with law, production of a subsequent competent-authority order revising the bill, and issuance of a revised bill, means the respondents are no longer in contempt. The contempt court does not redecide the correctness of the revised amount and leaves the consumer at liberty to pursue any remaining grievance against that bill. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill Once the 1 November 2021 Clause 6.5 revision order and revised bill of Rs. 9,03,405 were produced in court, the contempt petition was dismissed and notices discharged without examining whether that amount was correct; liberty was reserved to challenge the revised bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY**NOT DECIDED — CORRECTNESS OF THE REVISED BILL OF RS. 9,03,405**

Applicant left at liberty to pursue any remaining grievance against the revised bill. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Baluwa @ Ballu v. U.P. Power Corporation Limited</i> Writ C No. 27978, order dated 26.08.2019 (Allahabad High Court)			1	Referred

